

THE GAZETTE OF INDIA

EXTRAORDINARY

PART –II – SECTION 3 – SUB SECTION (ii)

PUBLISHED BY AUTHORITY

SECURITIES AND EXCHANGE BOARD OF INDIA

NOTIFICATION

Mumbai, the 10th day of December, 2002

SECURITIES AND EXCHANGE BOARD OF INDIA

(UNDERWRITERS) (AMENDMENT) REGULATIONS, 2002

S.O No. 1291(E). In exercise of the powers conferred by section 30 of the Securities and Exchange Board of India Act, 1992 (15 of 1992), the Board hereby makes the following Regulations to further amend the Securities and Exchange Board of India (Underwriters) Regulations, 1993, namely :-

1. These Regulations may be called the Securities and Exchange Board of India (Underwriters) (Amendment) Regulations, 2002.
2. They shall come into force on the date of their publication in the Official Gazette.

3. In the Securities and Exchange Board of India (Underwriters) Regulations, 1993:

(i) in regulation 7, for sub-regulation (2), the following shall be substituted: "(2) Notwithstanding anything contained in sub-regulation (1), every stock-broker, who acts as an underwriter shall fulfill the capital adequacy requirements specified by the stock exchange of which he is a member."

(ii) in regulation 12, in sub-regulation (1), in the proviso:

(a) the words "or a merchant banker" occurring after the words "a stock broker" shall be omitted; and,

(b) the words "or the Securities and Exchange Board of India (Merchant Bankers) Regulations, 1992" occurring after the words "the Securities and Exchange Board of India (Stock Brokers and Sub-brokers) Regulations, 1992" shall be omitted.

F.No. SEBI/LE/ 24032 /2002

G.N. BAJPAI

CHAIRMAN

Footnotes:

1. The Securities and Exchange Board of India (Underwriters) Regulations, 1993, the Principal Regulations were published in the Gazette of India on October 8, 1993 vide No. LE/10(E).
2. The Securities and Exchange Board of India (Underwriters) Regulations, 1993 was subsequently amended –
 - a. on November 28, 1995 by the Securities and Exchange Board of India (Payment of Fees) (Amendment) Regulations, 1995 vide S.O. No.939(E).
 - b. on January 17, 1997 by the Securities and Exchange Board of India (Underwriters) (Amendment) Regulations, 1997 vide S.O. No.46(E).
 - c. on January 5, 1998 by the Securities and Exchange Board of India (Underwriters) (Amendment) Regulations, 1998 vide S.O. No.21(E).

- d. on September 30, 1999 by the Securities and Exchange Board of India (Underwriters) (Amendment) Regulations, 1999 vide S.O. No.797(E).
- e. on March 28, 2000 by the Securities and Exchange Board of India (Appeal to the Securities Appellate Tribunal) (Amendment) Regulations, 2000 vide S.O. No.278(E).
- f. on May 29, 2001 by the Securities and Exchange Board of India (Investment Advice by Intermediaries) (Amendment) Regulations, 2001 vide S.O. No.476(E).
- g. on September 27, 2002 by the Securities and Exchange Board of India (Procedure for Holding Enquiry by Enquiry Officer and Imposing Penalty) Regulations, 2002 vide S.O. No.1045(E).